

The Private Security Agencies Central Model Rules, 2006

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[Rule THE-PRIVATE-SECURITY-AGENCIES-CENTRAL-MODEL-RULES-2006 of 2006](#)

[Published on 26 April 2006](#)

[Commenced on 26 April 2006](#)

[\[This is the version of this document from 26 April 2006.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Private Security Agencies Central Model Rules, 2006](#)

[Published vide Notification S.O. 617\(E\), dated 26.4.2006, published in the Gazette of India, Extraordinary, Part 2, Section 3\(ii\), dated 26.4.2006.](#)

[20.](#)

[/910](#)

[In exercise of the powers conferred by section 24 of the Private Security Agencies \(Regulation\) Act, 2005 \(29 of 2005](#)

[\), the Central Government hereby makes the following model rules, namely:--](#)

[1.](#)

[Short title and commencement](#)

[.-\(1\) These rules may be called The Private Security Agencies Central Model Rules, 2006.](#)

(2)

They shall come into force from the date of their publication in the Official Gazette.

2.

Definitions

.-In these rules, unless the context otherwise requires,--

(a)

"Act" means the Private Security Agencies (Regulation) Act, 2005;

(b)

"Agency" means the Private Security Agency;

(c)

"Controlling Authority" means, the Controlling Authority so declared under the Act;

(d)

"Form" means, a Form appended to these rules;

(e)

"License" means a license granted under the Act;

(f)

words and expressions not defined in these regulations but defined in the Act, shall have the same meaning respectively assigned to them in the Act.

3.

Verification of the antecedents of the applicants

.-(1) Every applicant while making an application to the Controlling Authority for the issue of a fresh license or renewal shall enclose the Form I for verification of his antecedents. If the application (sic applicant) is a company, a firm or an association of persons, the application shall be accompanied by Form I for every proprietor or majority shareholder, partner or director of the company, as if they were also the applicants.

(2)

[On receipt of such application the Controlling Authority shall make such inquiries, as it considers necessary to verify the contents of the application and the particulars of the applicant.]

[Material from sub-Clause(2) of Rule 3 and upto sub-Clause(b) of Clause1 of Rule 4 added by Corrigendum No. S.O. 1146(E), dated 19-7-2006, published in the Gazette of India, Extraordinary, Pt. II, Section 3(ii), dated 20-7-2006.]

(3)

The Controlling authority shall obtain a no objection certificate from the District Superintendent of Police of the concerned District where the Agency intends to commence its activities. For this purpose it will send to him a copy of the application for license and its attachments for verification and report.

(4)

The District Superintendent of Police in addition to the causing of verification of antecedents of every individual in whose name the antecedent form is filled up, shall also furnish and following information:

(i)

Whether the applicant or the company earlier operated any Private Security Agency, either individually or in partnership of others and if so, the details thereof; and

(ii)

Whether the applicant possesses any special qualification or skill, which may facilitate his operations of Private Security Agency.

4.

Verification of character and antecedents of the private security guard and supervisor

.-(1) Before any person in employed or engaged as a security guard or supervisor, the Agency shall satisfy itself about the character and antecedents of such person in any one or more of the following manner:-

(a)

by verifying the character and antecedents of the person by itself;

(b)

by relying upon the character and antecedent verification certificate produced by the person:

Provided that the character and antecedent certificate shall be valid and the Agency does not have any adverse report

regarding the person's character and antecedents from any other source; as prescribed herein under, produced by the person provided it is valid and the Agency does not have any adverse report regarding the person's character and antecedents from any other source;

(c)

by relying on the report received from the police authorities signed under the authority of the District Superintendent of Police or an officer of the equivalent or higher rank.

(2)

The person desirous of getting employed or engaged as security guard or supervisor shall submit Form II to the Agency. If the person has stayed in more than one District during the last five years, the number of forms will be as many as Districts.

(3)

The Agency shall cause an inquiry into the correctness of the particulars filled in either by itself or by sending the form to the respective District Superintendent of police.

(4)

The State Government may prescribe the form and the manner in which the fee is to be deposited for the service of character and antecedent verification by police.

(5)

The police will establish identity of the individual and verify the character and antecedents of the person by making a visit to the locality where the person claims to have resided or residing and ascertain his identity and reputation from the respectable residents of the locality. They will also consult the police station record of the concerned police station and other records at the District Police Headquarter before preparing the character and antecedents verification report. This report will contain the comments of the police on every claim of the person in character and antecedents Form and also a general report about his activities including means of livelihood in the period of verification. The police will specifically state if there is a criminal case registered against the person at any point of time or if he has ever been convicted of criminal offence punishable with imprisonment.

(6)

The police will specifically comment if the engaging or employing the person under verification by the Private Security Agency will pose a threat to National Security.

(7)

The police authorities shall ensure that character and antecedent verification report is issued within ninety days of the receipt of the character and antecedent form.

(8)

The report of the police regarding character and antecedents of a person will be graded as confidential. It will be addressed in named cover to a designated officer of the Security Agency requesting for character and antecedents.

(9)

Character and antecedents verification report once issued will remain valid for three years.

(10)

On the basis of police verification and on the basis of their own verification, the Agency shall issue in Form III a character certificate and this certificate will not be taken back by such Agency even if the person ceases to be the employee of that Agency.

5.

Security training

-(1) The Controlling Authority shall frame the detailed training syllabus required for training the security guards. This training shall be for a minimum period of hundred hours of classroom instruction and sixty hours of field training, spread over at least twenty working days. The ex-servicemen and former police personnel shall however be required to attend a condensed course only, of minimum forty hours of classroom instructions and sixteen hours of field training spread over at least seven working day.

(2)

The training will include the following subjects, namely:--

(a)

conduct in public and correct wearing of uniform;

- (b)
physical fitness training;
- (c)
physical security, security of the assets, security of the building or apartment, personnel security, household security;
- (d)
fire fighting;
- (e)
crowd control;
- (f)
examining identification papers including identity cards, passports and smart cards;
- (g)
should be able to read and understand English alphabets and Arabic numerals as normally encountered in the identification documents, arms license, travel documents and security inspection sheet;
- (h)
identification of improvised explosive devices;
- (i)
first-aid;
- (j)
crisis response and disasters management;
- (k)
defensive driving (compulsory for the driver of Armored vehicle and optional for others);
- (l)
handling and operation of non-prohibited weapons and firearms (optional);
- (m)
rudimentary knowledge of Indian Penal Code, right to private defense procedure for lodging first information report in the police station, Arms Act (only operative sections), Explosives Act (operative sections);
- (n)
badges of rank in police and military forces;
- (o)
identification of different types of arms in use in public and police;
- (p)
use of security equipments and devices (for example; security alarms and screening equipments); and
- (q)
leadership and management (for supervisors only).

(3)
The security guard will have to successfully undergo the training prescribed by the competent authority. On completion of the training each successful trainee will be awarded a certificate in Form IV by the training institute or organisation.

(4)
The competent authority will inspect the functioning of training facility from time to time either by itself or through its own officers. Normally such inspection will be conducted at least two times every year.

(5)
All the agencies shall submit a list of successful trainees to the Controlling Authority in the manner prescribed by it.

6.

Standard of physical fitness for security guards

-(1) A person shall be eligible for being engaged or employed as security guard if he fulfils the standards of physical fitness as specified below:--

(i)
Height, 160 cms (for female 150 cms), weight according to standard table of height and weight, chest 80 cms with an expansion of 4 cms (for females no minimum requirement for chest measurement).

(ii)
Eye sight : Far sight vision 6/6, near vision 0.6/0.6 with or without correction, free from color blindness should be able to

identify and distinguish color display in security equipments and read and understand display in English alphabets and Arabic numerals.

(iii)

Free from knock knee and flat foot and should be able to run, one kilometre in six minutes.

(iv)

Hearing : Free from defect; should be able to hear and respond to the spoken voice and the alarms generated by security equipments.

(v)

The candidate should have dexterity and strength to perform searches, handle objects and use force for restraining the individuals in case of need.

(2)

A candidate should be free from evidence of any contagious or infectious disease. He should not be suffering from any disease which is likely to be aggravated by service or is likely to render him unfit for service or endanger the health of the public.

(3)

Agency shall ensure that every security guard working for it undergoes a medical examination after every twelve months from his last such examination so as to ensure his continued maintenance of physical standard as prescribed for the entry level.

7.

Provision for supervisors

-(1) There shall be one supervisor to supervise the work of not more than fifteen private security guards.

(2)

In case the private security guards are on security duty in different premises and it is not practical to supervise their work by one supervisor, the agency shall depute more number of supervisors so that at least for every six private security guards there is one supervisor available for assistance, advice and supervision.

8.

Manner of making application for grant of license

-(1) Every application by an agency for the grant of a license under clause (1) of section 7 of the Act, shall be made to the Controlling Authority in the format prescribed in Form V.

(2)

Every application referred to in sub-rule (1) shall be accompanied by a demand draft or banker's cheque showing the payment of fees as prescribed under clause (3) of section 7, payable to the Controlling Authority of the state concerned where the application is being made.

(3)

Every application referred to in sub-rule (1) shall be either personally delivered to the Controlling Authority or sent to him by registered post.

(4)

On receipt of the application referred to in sub-rule (1), the Controlling Authority shall after noting thereon the date of receipt by him of the application, grant an acknowledgement to the applicant.

9.

Grant of license

-(1) The Controlling Authority, after receiving an application under sub-rule (1) of rule 8 shall grant a license to the private security agency in Form VI after completing all the formalities and satisfying itself about the suitability of the applicant and also the need for granting the license for the area of operation applied for.

(2)

The Controlling Authority either by itself or through its officers may verify the training and skills imparted to the private security guards and supervisors of any private security agency.

(3)

The Controlling Authority may review the continuation or otherwise of license of such security agencies which may not have adhered to the conditions of ensuring the required training.

10.

Conditions for grant of license

-(1) The licensee shall successfully undergo a training relating to the private security service as prescribed by the Controlling Authority within the time frame fixed by it.

(2)

The licensee shall intimate the name, parentage, date of birth, permanent address, address for correspondence and the principle profession of each person forming the agency within fifteen days of receipt of the license to the Controlling Authority.

(3)

The licensee shall inform the Controlling Authority regarding any change in the address of persons forming the Agency, change of management within seven days of such change.

(4)

The licensee shall immediately intimate to the Controlling Authority about any criminal charge framed against the persons forming the agency or against the private security guard or supervisor engaged or employed by the agency, in the course of their performance of duties as private security agency. A copy of such communication shall also be sent to the officer in charge of the police station where the person charged against resides.

(5)

Every licensee shall abide by the requirements of physical standards for the private security guards and their training as prescribed in these rules as the condition on which the license is granted.

(6)

Save as provided in these rules, the fees paid for the grant of license shall be non-refundable.

11.

Renewal of license

-(1) Every agency shall apply to the Controlling Authority for renewal of the license.

(2)

The fees chargeable for renewal of the license shall be the same as for the grant thereof.

12.

Conditions for renewal of license

-.The renewal of the license will be granted subject to the following conditions:--

(i)

The applicant continues to maintain his principle place of business in the jurisdiction of the Controlling Authority.

(ii)

The applicant continues to ensure the availability of the training for its private security guards and superiors required under sub-section (2) of section 5 of the Act.

(iii)

The applicant continues to adhere to the license conditions.

(iv)

The police have no objection to the renewal of the license to the applicant.

(3)

The form for application of renewal of license will be same as the form for the application for original license.

13.

Appeals and procedure

-(1) Every appeal under sub-section (1) of section 14 of the Act shall be preferred in Form VII signed by the aggrieved person or his authorised advocate and presented to the appellate officer in person or sent to him by registered post.

(2)

The Controlling Authority may prescribe a fee for the appeal to be filed under section 14 of the Act and the manner in which such fee will be paid.

14.

Register to be maintained by the agency

-.The register required to be maintained under the Act by the agency shall be in Form VIII.

15.

Photo-identity card

.(1) Every photo-identity card issued by the agency under sub-section (2) of section 17 shall be in Form IX.

(2)

The photo-identity card shall convey a full-face image in color, full name of the private security guard, name of the agency and the identification number of the individual to whom the photo-identity card is issued.

(3)

The photo-identity card shall clearly indicate the individual's position in the agency and the date up to which the photo-identity card is valid.

(4)

The photo-identity card shall be maintained upto date and any change in the particulars shall be entered therein.

(5)

The photo-identity card issued to the private security guard will be returned to the agency issuing it, once the private security guard is no longer engaged or employed by it.

(6)

Any loss or theft of photo-identity card will be immediately brought to the notice of the agency that issued it.

16.

Other conditions

.(1) Notwithstanding whether the agency mandates its private security guards to put on uniform while on duty or not, every private security agency will issue and make it obligatory for its security guards to put on:

(a)

an arm badge distinguishing the agency;

(b)

shoulder or chest badge to indicate his position in the organisation;

(c)

whistle attached to the whistle cord and to be kept in the left pocket;

(d)

shoes with eyelet and laces;

(e)

a headgear which may also carry the distinguishing mark of the agency;

(2)

The clothes worn by the private security guard while on active duty shall be such that they do not hamper in his efficient performance. In particular they will neither be too tight nor too loose as to obstruct movement or bending of limbs.

(3)

Every private security guard will carry a notebook and a writing instrument with him.

(4)

Every private security guard while on active security duty will wear and display photo-identity card issued under section 17 of the Act, on the outer most garment above waist level on his person in a conspicuous manner.

FORM-I

(See rule 3)

Form For Verification Of Antecedents Of Applicant

Thumb impression* of the applicant :

Signature of the applicant

FOR

OFFICE USE ONLY

Form

number

Name

of the police station sent for police verification

Date

Fee amount Rs.; Cash/D.D.; Name of bank

D.D. No.

Date of issue

Please read the instructions carefully before filling the form. Please fill in block letters: (Caution : Please furnish correct information. Furnishing of incorrect information or suppression of any factual information in the form will render the candidate unsuitable for grant of licence).

1. Name of applicant (initials not allowed) :

Last name; First name

2. If you have ever changed your name, please indicate the previous name(s) in full
.....

3. Sex (male/female).

4. Date of Birth :

5. Place of birth : Village/Town

District :State and Country

6. Father's full name/Legal guardian's full name (including surname, if any) (Initials not allowed)
:.....

7. Mother's full name (including surname, if any) (Initials not allowed):

For official use only

Form number Name of the Police Station sent for police verification Date

Passport size

Photograph

attested by Class-I

8. If married, full name of spouse (including surname, if any) (Initials not allowed) :.....

.....

9. Present residential address, including Street No./Police Station, Village and District

(with PIN Code) :.....

.....

Telephone No./Mobile No.

10. Please give the date since residing at the above-mentioned address :.....

.....

11. Permanent address including Street No./Police Station, Village and District (with PIN Code)

.....

.....

12. If you have not resided at the address given at column (9) continuously for the last five years, please furnish the other address (addresses) with duration(s) resided. You should furnish additional photocopies of this form for each additional place of stay during the last five years. Forms may be photocopied, but photograph and signature in original are required on each form :

From : To :

From : To :

13. In case of stay abroad particulars of all places where you have resided for more than one year after attaining the age of twenty-one years:

.....

.....

.....

14. Other details ?

(a)

Educational qualifications :.....

(b)

Previous positions held if any along with name and address of employers :

.....

(c)

Reason for leaving last employment :.....

.....

.....

.....
(d)

Visible distinguishing mark :

15. Did you earlier operated any Private Security Agency or were its partner, majority shareholder or Director? If yes then furnish the name, address of the agency and its licence particulars:

.....
16. Are you a citizen of India by birth / descent / registration / naturalisation ? If you have ever possessed any other citizenship, please indicate previous citizenship :

.....
.....
17.

Have you at any time been convicted by a court in India for any criminal offence and sentenced to imprisonment? If so, give name of the court, case number and offence. (Attach copy of judgment) :

.....
.....
18.

Are any criminal proceedings pending against you before a court in India? If so, give name of court, case number and offence :

.....
.....
19.

Self-declaration :

The information given by me in this form and enclosures is true and I am solely responsible for accuracy.

.....
(Signature/thumb-impression* of applicant)

Place :

Date :

20. Enclosures :

.....
.....
.....
.....
.....
(Signature / thumb-impression* of applicant)

*Left-hand thumb-impression if male and right-hand thumb-impression if female.

For Office Use Only

File No. :

Date of issue of C and A report.....

(Signature of Police Station In-charge)

Name of Police Station :

Name of Police District :

FORM-II

(See rule 4)

Form For Verification Of Character And Antecedents Of Security Guard And Supervisor

Thumb-impression* of the applicant :

Signature of the applicant :

FOR

OFFICE USE ONLY

Form

number

Name
of the police station sent for police verification

Date

Fee amount Rs.; Cash / D.D.; Name of bank

D.D. No.

Date of issue

Please read the instructions carefully before filling the form. Please fill in block letters: (Caution : Please furnish correct information. Furnishing of incorrect information or suppression of any factual information in the form will render the candidate unsuitable for employment/engagement in the private agency).

1. Name of applicant as should appear in the photo identity card (Initials not allowed): Last name :
..... First name :

2. If you have ever changed your name, please indicate the previous name(s) in full
.....

3. Sex (male/female):; 4. Date of birth :

5. Place of birth : Village / Town

District :; State and Country :

6. Father's full name / legal guardian's full name (including surname, if any) (Initials not allowed):.....

7. Mother's full name (including surname, if any) (Initials not allowed):
.....

8. If married, full name of spouse (including surname, if any) (Initials not allowed) :
.....

9. Present residential address, including Street No. / Police Station, Village and District
(with PIN Code)
.....
.....

Telephone No./Mobile No. :

10. Please give the date since residing at the above-mentioned address

DDMM/YYYY:.....

11. Permanent address including Street No./Police Station, Village and District (with PIN Code).....
.....

12. If you have not resided at the address given at column (9) continuously for the last five years, please furnish the other address (addresses) with duration(s) resided. You should furnish additional photocopies of this form for each additional place of stay during the last five years. Forms may be photocopied, but photograph and signature in original are required on each form:

From : To : From :
..... To :
.....

13. In case of stay abroad particulars of all places where you have resided for more than one year after attaining the age of twenty-one years:

.....
.....
.....

14. Other details :

(a)

Educational qualifications :

(b)

Previous positions held if any along with name address of employers :
.....
.....

(c)

Reason for leaving last employment:

(d)

Visible distinguishing mark :

(e)

Height (cms.) :

15. Are you working in Central Government/State Government/PSU/Statutory Bodies Yes / No

16. Are you a citizen of India by birth / de s c ent / registration / naturalisation? I f you have ever possessed any other citizenship, please indicate previous citizenship:

17. Have you at any time been convicted by a court in India for any criminal offence and sentenced to imprisonment? If so, give name of the court, case number and offence. (Attach copy of judgment):

18. Are any criminal proceedings pending against you before a court in India? If so, give name of court, case number and offence:

19. Has any court issued a warrant or summons for appearance or warrant for arrest or an order prohibiting your departure from India? If so, give name of court, case number and offence.

20. Self-declaration :

The information given by me in this form and enclosures is true and I am solely responsible for accuracy.

Place :

Date : (Signature/thumb-impression* of applicant)

*Left-hand thumb-impression if male and right-hand thumb-impression if female.

21.

Particulars of person to be intimated in the event of death or accident :

Name :

Address.....

Mobile/Telephone No.....

22.

Enclosures :

(Signature/thumb-impression* of applicant)

*Left-hand thumb-impression if male and right-hand thumb-impression if female.

For Office Use Only

File No. :

Date of issue of C and A report.....

.....

(Signature of Police Station In-charge)

Name of Police Station :

Name of Police District :

FORM III

(See rule 4)

Character And Antecedent Certificate

This is to certify that Mr./Ms., son/daughter of

Whose particulars are given below has good moral character and reputation and that the applicant has been staying at the following address continuously for the last one year.

Date of birth :

Place of birth :

Educational qualification :

Profession :

Present address :.....

Permanent address :.....

Issuing authority:

Signature :

Name :

Designation:

Address/Telephone No.:

Date of issue:

FORM IV

(See rule 5)

Training Certificate

Serial number:.....

Name of the Training Agency

Address of the Training Agency

Licence No.:.....

Certified that Mr./Ms., son/daughter of resident of

..... has completed the prescribed training for the engagement or employment as a Private Security Guard from.....till.....

His signature is attested below.

.....

Signature of the certificate holder.

Place of issue :

Signature of issuing authority:

FORM V

(See rule 8)

Application For New Licence / Renewal Of Licence To Engage In The Business Of Private Security Agency To

The Controlling Authority.

.....

.....

The undersigned hereby applies for obtaining a licence to run the business of operating services in the area of Private Security Agencies.

1. Full name of the applicant :
 2. Nationality of the applicant :
 3. Son/wife/daughter of :
 4. Residential address :
 5. Address, where the applicant desires to start his agency :
 6. Name of the Private Security Agency:
 7. Name and addresses of proprietor, partner, majority shareholder, Director and Chairman of the agency :
 8. Name and extent of facilities available :
 9. Qualifications of staff engaged for imparting instructions :
Name :
Age :
Designation :
 10. Equipments which will be used for security services?
 - (a)
Door Framed Metal Detector (DFMD)
 - (b)
Hand Held Metal Detector (HHMD)
 - (c)
Mine Detector
 - (d)
Other Detectors
 - (i)
Wireless Telephones
 - (ii)
Alarm Devices
 - (iii)
Armoured Vehicles
 - (iv)
Arms
 11. The particulars of the uniform including colour in case the applicant intends to use any uniform for the Private Security Guards and Supervisors of the Agency :
 12. Does the applicant intends to operate in more than one Districts ?
If so the name of the Districts 1., 2., 3., 4., 5.
 13. Does the applicant intends to operate in the entire State ?
 14. Does the applicant possesses the training facility in its own or will get it on out sourcing basis. The name and address of training facility should be
furnished.....
 - Signature :
Name of the applicant :
Address of the applicant :
Telephone number of the applicant :
Date of application :
Enclosures :
 1. Copy of current income tax clearance certificate.
 2. Affidavit as prescribed in section 7 of sub-section (2) of the Act.
 3. Other enclosures.
- FORM-VI
(See rule 8)
Government Of
Licence To Engage In The Business Of Private Security Agency
Serial No. :

Date :

Shri (Name of applicant) Son of.
.....resident of.....

.....(Full address)

..... is granted the licence by the Controlling Officer for the State of
..... to run the business of Private Security

Agency in the District (s) of/State of (strike of the in applicable words)

.....with office at (address of the office).

Place of issue :

Date of issue :

This licence is valid up to :

.....

Signature:

Name of granting authority:

Designation:

Official address:

Renewal

(See rule 8)

Date

of renewal

Date

of expiry

1.

2.

3.

4.

.....

Signature:

Name of renewing authority:

Designation

FORM VII

(See rule 9)

Form For Appeal

An appeal under section 14 of the Act

Appellant:.....S/o..... Resident of

.....

Versus

Controlling Authority :

Theabove named appeal to the (State Home
Secretary).....from the order of (Controlling Authority), datedday of

.....and against refusal of licence to run private security
agency.....and setsforth the following grounds of objection to the order appeal

from namely.....

1.

2.

3.

4.

Enclosed list of documents:

.....

.....

Signature:

Name and designation of the appellant :

Place

Date

FORM-VIII

(See rule 10)

Register Of Particulars

(PART-I-MANAGEMENT DETAILS)

Sl.

No.

Name

of person(s) managing the Agency

Parent's/Father's

name

Present

address & phone No.

Permanent

Address

Nationality

Date

of joining/leaving the Agency

1.

Sl.

No.

Name

of Guard/Supervisor

Father's

name

Present

address and phone No.

Date

of joining/leaving the Agency

Permanent

address

Photograph

Badge

No.

Salary

with date

1.

2.

(PART III-CUSTOMERS)

Sl.

No.

Name

of the Customer and phone No.

Address

of the place where security is provided

Number

and ranks of Security Guards provided

Date

of commencement of services

Date
of discontinuation of services
(PART-IV-DUTY ROSTER)
Sl.
No.
Name
of the Private Security Guard/Supervisor
Address
of the place of duty
Whether
provided with any arms/ammunition
Date
and time of commencement of duty
Date
and time of ending of duty
FORM-IX
(See rule 11)
Photo Identity Card For Private Security Guard/supervisor
(Name of the Private Security Agency)
Name
Official designation
Identification No.
Date of issue
Valid up to
Signature of the cardholder.....
Signature of the issuing authority.
Official seal
Related AI tags, queries and research notes
Translation